

LIMITED PRODUCT GUARANTEE TERMS AND CONDITIONS

LIQUIPEL PROTECTION LLC (“**SIMPLE**”), OFFERS THE SIMPLE PROTECTION PROGRAM WITH A ONE-TIME LIMITED DEVICE PROTECTION GUARANTEE TO PROVIDE COVERAGE AGAINST DEFECTS DESCRIBED BELOW (“**PROGRAM**” or “**LIMITED GUARANTEE**”) TO EACH OF ITS CUSTOMERS (REFERRED TO AS “**YOU**,” “**YOUR**” AND SIMILAR TERMS) WHO MEET THE ELIGIBILITY REQUIREMENTS AND FOLLOW THE PROGRAM PROCEDURES DESCRIBED BELOW, SUBJECT TO ALL OF THE TERMS AND CONDITIONS IN THIS DOCUMENT (“**TERMS**”). YOU SHOULD CAREFULLY REVIEW THESE TERMS. BY UTILIZING THE PROGRAM AND FOLLOWING THE REGISTRATION PROCESS OUTLINED IN THESE TERMS, YOU ARE CONFIRMING THAT YOU AGREE TO ALL PROGRAM TERMS AND CONDITIONS.

1. Program Overview.

Your authentic SIMPLE-branded screen protection product (“**SIMPLE Product**”) was designed to prevent certain physical damage from occurring to the screens of specified mobile devices, as indicated on the SIMPLE Product packaging (each an “**Eligible Device**”). SIMPLE offers this Program, subject to the full terms, conditions, limitations, and exclusions contained herein, which you should carefully review in their entirety. Here is an overview of some of the key eligibility and registration requirements, as well as the Claim submission process:

Eligibility: This Program is available only to individual consumers, who are residents of the continental U.S., Alaska, and Hawaii, who purchase an authentic SIMPLE Product from an authorized dealer and validly register for the Program within **thirty (30) calendar days** using an activated Eligible Device and submit your Claim within **one (1) year** of the original date of purchase of your SIMPLE Product.

Registration: Within **thirty (30) calendar days** following the original date of purchase of the SIMPLE Product (“**Registration Period**”), download the *instaProtek* mobile application (“**instaProtek App**”) available for download on the Apple or Google Play store, and using your Eligible Device, register the SIMPLE Product and Eligible Device by supplying all required information, which includes personal contact details, the IMEI of your Eligible Device, and a photo of your original dated proof of purchase. Your registration for the Program is not complete unless and until you receive a confirmation e-mail. Note: the benefits provided under the Program are non-transferable and a Claim may only be submitted by the individual who successfully registers for the Program.

How to File a Claim: Initiate a Claim through the *instaProtek* App on your Eligible Device or by e-mailing us at support@instaprotek.com. Your Claim must be verified by SIMPLE’s Service Center. In order for your Claim to be finally accepted and validated, SIMPLE will verify information provided during the registration process and Claims process. Once your Claim is validated, follow all instructions and complete repairs within **thirty (30) calendar days**.

2. Device Protection Limited Guarantee.

What’s Covered: Subject to all terms, conditions, exclusions, and limitations set forth herein, for a period of one (1) year beginning on the date of purchase of the SIMPLE Product, if your Eligible Device suffers a cracked screen while the SIMPLE Product is properly affixed to the Eligible Device and the cracked screen causes your Eligible Device to not operate as intended, the SIMPLE Limited Guarantee covers reimbursement towards the actual cost to repair a cracked screen on your Eligible Device and is limited to a maximum benefit amount that is determined by the SIMPLE Product purchased, ranging between USD \$100.00 and USD \$250.00. The maximum benefit amount specified on the SIMPLE Product packaging is a material term of this Limited Guarantee and is incorporated herein by reference. This amount will be applied towards the repair or replacement of your Eligible Device’s **screen only** at approved repair facilities specified by the Service Center at the time a Claim is initiated through the Service Center.

What’s Excluded: This Limited Guarantee expressly excludes all Physical Damage to the Eligible Device other than

screen breakage. “**Physical Damage**” is defined as damage to the internal or external components of the Eligible Device (including processors, circuit boards, control buttons, cameras, back glass/encasements). This Limited Guarantee expressly excludes: Physical Damage resulting from power surges, exposure to or submersion in liquid, intentional acts, or catastrophic events that render the Eligible Device inoperable; screen damage that is determined to have resulted from normal wear and tear, defects in materials or workmanship, or misuse/abuse of the Eligible Device; cosmetic damage such as scratches, or defective pixels where there are fewer than four (4) defective pixels throughout the entire display area; any damage whatsoever if the SIMPLE Product has not been properly affixed to your Eligible Device in accordance with the instructions applicable for your SIMPLE Product (“**Instructions**”); damage to or malfunctions of batteries, power supply, accessories, apps, software (including operating systems); or loss of files or data of any kind. The Limited Guarantee does not cover any loss or theft, or any device damage or failure of any kind other than the screen breakage described above.

Your Eligible Device must have the SIMPLE Product affixed and in place at the time the Eligible Device screen was damaged and when the Eligible Device arrives at the repair provider for inspection and/or repair. Consult the manufacturer of your Eligible Device for malfunctions involving operating systems and/or software. It is your responsibility to backup all information prior to submitting your Eligible Device for repair.

3. **Eligibility Requirements.**

Program eligibility is conditioned on you satisfying each of the criteria listed below (collectively, “**Eligibility Requirements**”):

- 3.1 You must be an individual consumer. This Program is not offered to businesses, governments, or organizations (e.g., school districts, corporate IT departments, etc.).
- 3.2 You must be a valid resident of the continental U.S., Alaska, or Hawaii (the Program is void for any Claim (defined in below) made by any customer residing outside the continental U.S., Alaska, or Hawaii).
- 3.3 You must have purchased an authentic SIMPLE Product from an authorized SIMPLE dealer.
- 3.4 You must have validly registered the SIMPLE Product and the Eligible Device, in accordance with the Registration Process described below, within **thirty (30) calendar days** following the original date of purchase of the SIMPLE Product (“**Registration Period**”).
- 3.5 You must submit a claim (“**Claim**”) within **one (1) year** following the original date of purchase.
- 3.6 The Eligible Device must be activated and undamaged at the time it is registered. Damage incurred prior to registration being completed will not be covered under the Program.

4. **Registration Process.**

As part of the Eligibility Requirements, you must take the following steps to register the SIMPLE Product and the Eligible Device:

- 4.1 Within the Registration Period, download the *instaProtek* App from the Apple or Google Play store.
- 4.2 Using your Eligible Device, register the SIMPLE Product and the Eligible Device by providing the following required information:
 - (a) Your original dated proof of purchase for your SIMPLE Product. You will need to enter in the

purchase date and upload a photo of your proof of purchase. The proof of purchase and photo must clearly show the place of purchase, date of purchase, and the SIMPLE Product purchased. If it does not show this information, your registration will be invalid, and you will be ineligible for the Program.

- (b) The IMEI number for the Eligible Device.
- (c) Any pertinent personal information, including name, address, telephone number, and e-mail address.

For a complete description of how SIMPLE will use and collect your personal information please see the SIMPLE Privacy Policy at <https://www.instaprotek.com/en/privacy>.

- 4.3 You must successfully pass all diagnostic tests presented within the *instaProtek* App.
- 4.4 After successfully completing each of the registration steps above, you will receive a confirmation email at your designated email address that registration has been completed. If you do not receive a confirmation email, it is your responsibility to contact the Service Center via the contact information listed on the SIMPLE Product packaging or the *instaProtek* App, to resolve this situation. Your Eligible Device will not be considered registered unless you have received a confirmation email.
- 4.5 Once you are registered, the registration is not transferable to any person or to any other SIMPLE Product or Eligible Device.

5. **Claim Submissions.**

Submit a Claim as follows:

- 5.1 Initiate a Claim through the *instaProtek* App. The *instaProtek* App must have been installed on the Eligible Device you registered at the time of damage. The *instaProtek* App will be used to verify your registration and device information.
- 5.2 Your Claim must be verified by SIMPLE's Service Center. In order for your Claim to be finally accepted and validated, SIMPLE will verify the following:
 - (a) Name of person submitting Claim matches the name associated with the Program Registration Number (as submitted during the Registration Process).
 - (b) The SIMPLE Product was registered within **thirty (30) calendar days** following the original date of purchase listed on the original proof of purchase image (as provided during the Registration Process).
 - (c) All required information was submitted during the Registration Process, including images of your valid proof of purchase and the IMEI screen on your Eligible Device.
 - (d) The SIMPLE Product is authentic.
 - (e) Your device is an Eligible Device and the damage to your Eligible Device is of the type covered by the Limited Guarantee, and the Claim is otherwise valid under the requirements of the Limited Guarantee.
- 5.3 You will be required to submit satisfactory photographic documentation during the claims process, including

an image of the damage to the screen of your Eligible Device. **Prior to having your Eligible Device repaired, your Claim must be approved, and you must receive written authorization from our Service Center. Otherwise, your claim will be denied.**

- 5.4 If your Claim passes the verification process, then our Service Center will provide written notice of Claim approval and instructions on how to obtain the authorized repairs. The repair process may require an additional inspection by our local or centralized repair facility. Your Eligible Device must have the SIMPLE Product installed/applied and in place when the device is presented for repair or inspection. Upon approval, you will be referred to an approved repair provider or in most cases a repair provider of your choice.

- 5.5 **You will have thirty (30) calendar days from the date of Claim verification to complete repairs on your Eligible Device and upload the repair receipt. Failure to complete the Claim process within this time period will automatically result in the closure of your Claim and you will no longer be eligible for reimbursement and your one-time use of the Limited Guarantee will be deemed complete.** You are responsible for the cost of repair at the time of repair. **Upon completion of the repair, you must submit the repair receipt to our Service Center, in accordance with their instructions.** The repair receipt cannot be handwritten and must show the following:

- (a) Repair provider name.
- (b) Repair provider phone number.
- (c) Make/model of device repaired.
- (d) IMEI.
- (e) Type of repair (screen).
- (f) Total cost of repair.
- (g) Date of repair after Claim filed.

You will be reimbursed based on the amount of repair minus any amount covered by your warranty/insurance carrier and minus any applicable processing fee. You may elect to be reimbursed electronically using PayPal, or via electronic funds transfer (EFT) via Automated Clearing House (ACH). While SIMPLE does not charge any processing fees for these electronic reimbursement options, third party service providers (e.g., PayPal) may assess their own processing fees to receive funds through their platforms. Alternatively, you may elect to be reimbursed by check. If you elect to receive your reimbursement payment (“**Settlement**”) via check, a USD \$12.99 processing fee will be deducted from the Settlement payment, which will be sent to the address on file, payable to the name of the person registered. If your Claim has been denied, a reason for denial (such as, for example, incomplete information, mismatched information, incorrect Product application, etc.) will be provided.

- 5.6 Once the Claim has been completed (either finally approved or denied) your one-time use of the Limited Guarantee is deemed completed and is no longer available to you for the Eligible Device and the SIMPLE Product purchased.

6. **Additional Terms and Conditions.**

- 6.1 **Repairs by a Third Party.** If **prior to an approved Claim** you obtain a repair of your Eligible Device from any third party, including but not limited to your wireless carrier (e.g., Verizon), Apple, Samsung, Motorola,

Google, or any other retailer, then the Limited Guarantee is no longer available to you, and SIMPLE is not responsible for reimbursement or payment of any fees or deductibles associated with said repair. The Program is only available to the specific Eligible Device that you registered during the Registration Process. By submitting a Claim under the Program, you are representing and warranting to SIMPLE that the SIMPLE Product was used in accordance with its applicable Instructions. Violation of the foregoing (for example, submitting a Claim when you have modified the SIMPLE Product, improperly used the SIMPLE Product or used the SIMPLE Product outside the specified limits) may constitute fraud, and, in addition to voiding your right to participate in the Program, may subject you to legal action from SIMPLE.

- 6.2 Program Modifications. SIMPLE reserves the right to modify the processes, procedures, parameters, or other terms of the Program, or terminate the Program entirely, at any time, without prior notice to you. If SIMPLE terminates the Program, it may provide you with a one-time Settlement as determined by SIMPLE in its sole discretion. The current status of the Program and applicable terms are available on the *instaProtek* App.
- 6.3 WARRANTY DISCLAIMERS. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, SIMPLE SPECIFICALLY DISCLAIMS AND EXCLUDES ANY AND ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING, WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF NON-INFRINGEMENT, QUIET ENJOYMENT, MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE. SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF IMPLIED WARRANTIES OR LIMITATIONS ON HOW LONG AN IMPLIED WARRANTY MAY LAST, SO SUCH LIMITATIONS OR EXCLUSIONS MAY NOT APPLY TO YOU. IF APPLICABLE LAW SPECIFIES A MINIMUM GUARANTEE PERIOD, THEN THE GUARANTEE PERIOD FOR PRODUCTS SUBJECT TO SUCH APPLICABLE LAW SHALL BE CONFORMED WITH TO THE MINIMUM PERIOD SO REQUIRED. THIS WARRANTY GIVES YOU SPECIFIC LEGAL RIGHTS AND YOU MAY ALSO HAVE OTHER RIGHTS WHICH VARY FROM JURISDICTION TO JURISDICTION.
- 6.4 LIMITATION OF LIABILITY. IN NO EVENT, UNDER ANY CAUSE OF ACTION OR THEORY OF LIABILITY, WILL SIMPLE, ITS SERVICE CENTER, DISTRIBUTORS, OR SUPPLIERS BE LIABLE TO YOU OR ANY THIRD PARTY FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OF ANY NATURE WHATSOEVER, ARISING OUT OF OR IN CONNECTION WITH THE PROGRAM, EVEN IF ANY SUCH PERSON OR ENTITY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. NOTWITHSTANDING ANY DAMAGES THAT YOU MIGHT INCUR FOR ANY REASON WHATSOEVER (INCLUDING, WITHOUT LIMITATION, ALL DAMAGES REFERENCED HEREIN AND ALL DIRECT OR GENERAL DAMAGES IN CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE), THE ENTIRE AGGREGATE LIABILITY OF SIMPLE AND ANY OF ITS SERVICE CENTER, DISTRIBUTORS AND/OR SUPPLIERS SHALL BE LIMITED TO THE AMOUNT ACTUALLY PAID BY YOU FOR THE PRODUCTS THAT ARE SUBJECT TO THE PROGRAM. SOME STATES AND/OR JURISDICTIONS DO NOT ALLOW THE EXCLUSION OR LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO THE ABOVE LIMITATIONS OR EXCLUSIONS MAY NOT APPLY TO YOU. THE LIMITATIONS OF LIABILITY SET FORTH ABOVE SHALL APPLY TO THE MAXIMUM EXTENT PERMITTED UNDER APPLICABLE LAW.
- 6.5 ARBITRATION. Read the following arbitration provision carefully. It limits certain rights you may have, including your right to obtain relief or damages through court action. By registering under the Program for the Program Limited Guarantee, you specifically agree to this arbitration provision. To begin arbitration, either you or SIMPLE must make a written demand to the other party for arbitration for the applicable claim (“**Arbitration Claim**”). The arbitration will take place before a single arbitrator. It will be administered in keeping with the Expedited Procedures of the Commercial Arbitration Rules (“**Rules**”) of the American Arbitration Association (“**AAA**”) in effect when the arbitration Claim is filed. You may get a copy of these AAA’s Rules by visiting <http://www.adr.org>. The filing fees to begin and carry out arbitration will be shared

equally between you and SIMPLE. This does not prohibit the arbitrator from giving the winning party their fees and expenses of the arbitration. Unless you and SIMPLE agree, the arbitration will take place in the county and state where you live. The Federal Arbitration Act, 9 U.S.C. § 1, et seq., will govern and not any state law on arbitration. YOU AGREE AND UNDERSTAND THAT this arbitration provision means that you give up your right to go to court on any claim covered by this provision. You also agree that any arbitration proceeding will only consider your Arbitration Claim. Claims by, or on behalf of, other individuals will not be arbitrated in any proceeding that is considering your arbitration Claim. THE DEGREE TO WHICH ARBITRATION CAN BE USED AS A DISPUTE RESOLUTION PROCESS FOR CONSUMER CLAIMS VARIES FROM STATE TO STATE, SO THIS ARBITRATION PROVISION MAY NOT APPLY TO YOU, DEPENDING ON YOUR STATE OF RESIDENCE. In the event this arbitration provision is not approved by the appropriate state regulatory agency, and/or is stricken, severed, or otherwise deemed unenforceable by a court of competent jurisdiction, you and SIMPLE specifically agree to waive and forever give up the right to a trial by jury. Instead, in the event any litigation arises between you and SIMPLE, any such lawsuit will be tried before a judge, and a jury will not be impaneled or struck.

- 6.6 Savings Clause. All parts of this Limited Guarantee shall apply to the maximum extent permitted by applicable law or unless prohibited by applicable law. If a court of competent jurisdiction determines that SIMPLE cannot enforce a part of this Limited Guarantee as written, that part shall be deemed replaced with similar terms to the extent enforceable under the applicable law (or where the court will not amend this Limited Guarantee, such part will be severed), but the remainder of this Limited Guarantee shall not be altered.
- 6.7 Repairs. SIMPLE does not warranty, is not responsible for and shall not be liable for repairs performed on your Eligible Device. Some repairs may void the manufacturer's warranty on your Eligible Device. Unless a mandatory provision of applicable law provides otherwise, repairs performed in satisfaction of this Limited Guarantee may utilize new or refurbished parts.